



DISCIPLINARY POLICY

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Revision History

Version	Change Description	Prepared By	Reviewed By	Approved By	Date
1.0	Initial issue for Clyptus	HR	DIRECTOR	Management	02/01/2025



PURPOSE OF POLICY

The purpose of this policy is to establish a fair and transparent internal governance framework for addressing "unacceptable" employee actions. It aims to provide a guided, reasonable approach to help employees improve their conduct to reach acceptable standards. This policy is intended to be corrective rather than purely punitive.

SCOPE

This Policy applies to:

- All employees (full-time, part-time, fixed-term)
- Contractual staff (to the extent applicable)
- Interns, trainees, and article trainees
- Candidates during recruitment and selection processes
- Directors of the company

This policy also extends to employees deployed at **client locations**, working remotely, or in hybrid arrangements.

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I. MISCONDUCT

To ensure the smooth and effective operation of the organization, it is essential to maintain high standards of discipline and professional behavior. The Company identifies two primary areas where disciplinary action may be required to address unsatisfactory conduct and encourage improvement. These categories distinguish between actions involving minor faults and those involving serious breaches of the Company's Code of Conduct and policies

GENERAL MISCONDUCT:

This includes but not limited to faults or breaches of standards such as verbal abuse, persistent poor timekeeping, or disruptive behavior

GROSS MISCONDUCT:

Serious infractions that may lead to immediate suspension or termination which include:

- Theft, fraud, or misappropriation of funds/property.
- Physical violence, assault, or intimidation at the workplace.
- Consumption of drugs or alcohol during office hours or on premises.
- Unauthorized disclosure of confidential company or customer data.
- Sexual harassment (to be dealt with as per the specific SH policy).
- Absconding from work for 7 consecutive working days without authorization

DISCIPLINARY ACTION STAIRCASE:

The company follows a graduated approach to discipline. The severity of the action depends on the nature of the misconduct.

Level	Action	Typical Trigger
Stage 1	Counselling / Verbal Warning	Minor/unintentional incidents or first-time infractions.
Stage 2	Written Warning	Recurrence of misconduct or a serious first-time incident.
Stage 3	Performance Pay Deduction / Suspension	Serious breaches where termination is not yet justified.
Stage 4	Termination	Proven gross misconduct or failure to improve after a final warning.

II. INVESTIGATION PROCESS:

To ensure fairness, no disciplinary action will be taken until a thorough investigation is completed. The process involves:

- **Appointment:** The Disciplinary Action Committee (DAC) will appoint an independent investigating officer with no interest in the matter.
- **Fact-Finding:** The officer will gather evidence and interview relevant witnesses as soon as reasonably practicable.
- **Confidentiality:** All individuals involved must maintain strict confidentiality. Unauthorized disclosure to the public or media is strictly prohibited and subject to action.
- **Rights:** During the investigation stage, employees do not normally have the right to legal representation. Decisions are only made after the full procedure is complete.

DISCIPLINARY INQUIRY & PROCEEDINGS

Once an investigation reveals sufficient evidence, the formal inquiry begins:

1. **Charge Sheet:** A charge sheet detailing the findings and charges will be prepared and submitted to HR within **10 working days**.
2. **Show Cause Notice:** The employee will receive the charge sheet and a show-cause notice to provide a written defense within a reasonable timeframe. Note: If the employee confesses, a show-cause notice is not required.
3. **DAC Hearing:** The DAC will hold a hearing where the employee can inspect evidence and cross-examine witnesses. If the employee fails to attend without reason, the DAC may decide based on available information.
4. **Timeline:** The entire proceeding should ideally be completed within **90 days** of initiation.

DISCIPLINARY ACTION COMMITTEE (DAC)

The DAC is responsible for hearing cases and recommending actions.

- **Composition:** The committee consists of senior management representatives from Finance, Legal, HR, Risk, and Strategy .
- **Quorum:** A minimum of **three members** is required for a meeting.
- **Impartiality:** If a complaint is against a DAC member, they will be removed and replaced for that specific case.



Suspension

The Company may suspend an employee to ensure an unhindered investigation or to protect company property/reputation.

- **Terms:** Suspension will be on **full pay and benefits** while the investigation is ongoing.
- **Notification:** The employee will receive a written letter stating the reason, start date, and expected duration.
- **Restrictions:** Access to office premises (security pass) and computer systems will be temporarily disabled.

EMPLOYEE APPEAL PROCEDURE

This procedure provides employees an opportunity to appeal against disciplinary actions such as termination, penalties, or adverse decisions arising from:

- Misconduct
- Negative client feedback
- Workplace misbehavior

It ensures a fair review process where the employee can present additional evidence or clarification.

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EMPLOYEE RIGHTS

At every formal stage, the employee has the right to:

- Be informed of the specific complaints against them.
- Present their case and call witnesses to support their defense.
- Know the identity of their interviewer.
- Receive the reasons for any penalty imposed in writing.

Eligibility for Appeal

An employee may file an appeal if:

- They believe the decision was unjust or based on incomplete information
- They were unable to present evidence at the time of the allegation
- New evidence or legal proof has become available

Appeal Submission Process

Timeline

- Appeal must be submitted within 7–10 working days from the date of termination or disciplinary action.

Submission Authority

- The employee must submit a formal appeal to:
- Primary Contact: Senior HR (from employee's business unit)
- CC To: HR Head

Format of Appeal

The appeal must include:

- Written explanation of the case
- Reason for disagreement with the decision
- Any supporting documents or legal proof (if available)
- Explanation if no evidence was available earlier

Handling Cases with No Immediate Evidence

If the employee has no evidence at the time of appeal:

- The appeal will still be accepted
- A grace period (up to 15–30 days) may be granted to submit supporting proof
- The employee must provide a written declaration explaining the delay

Appeal Review Committee

Composition

- The Appeal Committee will consist of:
- Senior HR (from employee's team)
- HR Head
- Reporting Manager
- Director (Final authority for appeal decisions)

Optional Inclusion

- Departmental Head (if required)
- Neutral observer (for sensitive cases)

Appeal Review Process

- **Step 1: Acknowledgment**
- HR acknowledges receipt of appeal within 2–3 working days
- **Step 2: Preliminary Review**
- Check completeness of submission
- Decide whether additional information is needed
- **Step 3: Hearing**
- Employee may be invited for a hearing (virtual or in-person)
- Employee can present explanation and evidence
- Committee may ask questions
- **Step 4: Evidence Evaluation**
- Review all documents, including:
- Client feedback
- Internal reports
- Employee submissions

- **Step 5: Decision Making**

Possible outcomes:

- Uphold original decision
- Modify punishment
- Revoke termination
- Reduce penalties/fines
- Convert termination into warning or suspension

Settlement & Compensation Adjustment

If the decision is revised:

- Final settlement will be recalculated
- Any deductions or penalties may be reduced or waived
- Payment release will follow revised terms

Communication of Decision

- Final decision will be communicated in writing within 7–15 working days after review
- Decision by the Director is final and binding

Confidentiality

- All appeal proceedings will remain confidential
- Only involved parties will have access to case details

Key Principles

- Fair opportunity to defend
- No bias or retaliation
- Transparent evaluation
- Timely resolution

Important Notes

- Filing an appeal does not guarantee reversal of the decision
- False claims or fabricated evidence may lead to further disciplinary action
- Employee cooperation is mandatory during the process

RECORDS & REPORTING

- **Maintenance:** Disciplinary files (physical and electronic) will be preserved for **8 years** after the end of employment. In case of litigation, records are kept indefinitely.

DOCUMENT APPROVAL

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